

Meera Devi vs Kanwar Singh on 5 July, 2024

Neutral Citation No. (2024:HHC:4535) IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. Revision No.561 of 2023 and .

Criminal Revision No. 417 of 2022 Reserved on: 12.06.2024 Date of Decision: 05.07.2024

1. Cr. Revision No.561 of 2023 Meera DeviPetitioner Versus Kanwar SinghRespondent

2. Cr. Revision No. 417 of 2022 Kanwar Singh ...Petitioner Versus Meera Devi ...Respondent Coram Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting? No For the petitioner in Cr. Revision : Ms Heena Chauhan, Advocate No. 561 of 2023 & for Respondent For the Respondent in Cr. : Mr. Divender Ghosh, Revision No.561 of 2023 & for the Advocate. petitioner in Cr. Appeal No. 417 of Rakesh Kainthla, Judge The present revisions are directed against the order dated 02.07.2022 passed by learned Additional Principal Judge, Family Court, Kinnaur at Rampur Bushhar (learned Trial Court), Page |2 vide which, the maintenance of 2,000/- per month was ordered in favour of the petitioner/wife.

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2. Briefly stated, the facts giving rise to the present petition are that the petitioner/wife filed a petition under Section 125 of Cr.P.C. seeking maintenance @ 10,000/- per month to her.

It was asserted that the petitioner is the legally wedded wife of the respondent. The marriage between the parties was solemnized in December 2010 as per Hindu Rites and Customs. The parties resided together for one year after the marriage at Village Sungra.

Thereafter, the respondent started beating the petitioner without any rhyme or reason. He gave beatings to her on 05.03.2015 with kicks and fist blows. The petitioner was badly injured and an FIR No.16/2012 dated 07.03.2012 was registered in the Police Station Bhawanagar. The respondent threatened the petitioner to do away with her life in case, she stayed in her matrimonial home. The petitioner was compelled to leave her matrimonial home and take shelter in her father's house. The petitioner has no source of income and is dependent upon her father. The respondent is an employee in DET, Sungra and he earns 35,000/- per month. He can easily pay maintenance to the petitioner. He also possesses Page |3 land and an orchard and earns more than 5,00,000/- per annum from the orchard. Hence, the petition seeking the maintenance.

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3. The petition is opposed by filing a reply taking preliminary objections regarding the petitioner not being the legally wedded wife of the respondent and there being no valid marriage between the parties. The contents of the petition were denied on merits. It was specifically denied that a marriage was solemnized between the parties in December 2010. It was asserted that the petitioner was

married to one Shalig Ram. She had one son and one daughter from Shalig Ram. The marriage between the petitioner and Shalig Ram was not dissolved as per the law. The petitioner started residing with Ashok Kumar of Chintpurni and thereafter, with Ved Prakash. She also executed a customary divorce deed with Ved Prakash. The respondent lost his wife and he contacted the petitioner in 2011. The petitioner developed a relationship with the respondent and she assured to look after his children subject to the condition that her name was entered in the Panchayat record. The respondent refused to do so initially;

however, the petitioner threatened the respondent to implicate him in a false rape case. She also demanded 1,00,000/- for herself and 50,000/- for her daughter. The respondent could not Page |4 arrange the money and got the petitioner's name entered in the Panchayat record. It was denied that the respondent maltreated .

the petitioner under the influence of liquor. It was asserted that the petitioner got a false FIR lodged against the respondent at Police Station Bhawanagar. The respondent is a petty employee having meagre income. He has to maintain his family members;

hence, it was prayed that the present petition be dismissed.

4. A rejoinder denying the contents of the reply and affirming those of the petition was filed.

5. The parties were called upon to produce the evidence and the petitioner examined herself (AW1) and Tara Chand (PW2).

Respondent examined Shashi Bhushan (RW1), himself (RW2) and Ved Prakash (RW3).

6. The learned Trial Court held that the respondent admitted that he had voluntarily entered the name of the petitioner as his wife. He also admitted that the petitioner had divorced Shalig Ram and solemnized marriage with the respondent; hence, the plea taken by him that the petitioner is not a legally wedded wife of the respondent was not acceptable. The salary slip of the respondent was proved on record. The plea of the Page |5 respondent that the petitioner was living in adultery was also not established. Any marriage solemnized by the petitioner during the .

subsistence of her marriage with the respondent is void and the customary divorce deed will not help him. Hence, the petition was partly allowed and maintenance of 2,000/- per month was awarded in her favour.

7. Being aggrieved from the order passed by the learned Trial Court, the petitioner and the respondent filed separate revisions.

8. The petitioner asserted in her revision petition that maintenance of 2,000/- per month awarded to her was meagre and a prayer was made to enhance the same to 10,000/- per month. It was asserted that the learned Trial Court failed to notice the salary certificate, which shows that the respondent is getting a salary of 67,854/-. The price index is very high and it is impossible to

maintain the petitioner from a sum of 2,000/- per month. The respondent can easily pay the maintenance of 10,000/- per month; hence, it was prayed that the present revision be allowed and the order passed by the learned Trial Court Page |6 be modified by enhancing the maintenance to 10,000/- per month.

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9. In the revision petition filed by the respondent, it was prayed that the order passed by the learned Trial Court be quashed and set aside. It was asserted that the learned Trial Court failed to appreciate the material placed before it. The petitioner had not divorced Shalig Ram before marrying the respondent. She was in the habit of getting married to various persons for extorting money by involving them in false criminal cases. She married Ved Prakash and was not entitled to claim any maintenance from the respondent. The name of the petitioner was entered in the Pariwar Register when the petitioner threatened the respondent to implicate him in a false case. The petitioner does not fall within the definition of a wife and was not entitled to maintenance. Ved Prakash (RW3) proved that the petitioner (Meera Devi) had solemnized marriage with him on 03.10.2011 and they resided as husband and wife for 8 days. This shows that the petitioner (Meera Devi) was living in adultery and was not entitled to maintenance.

The petitioner even admitted her marriage with Ved Prakash in the previous proceedings and the learned Trial Court erred in discarding this fact; therefore, it was prayed that the present Page |7 petition be allowed and the order passed by the learned Trial Court be set aside.

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10. I have heard Ms. Heena Chauhan, learned Counsel for the petitioner and Mr. Devender Ghosh, learned counsel for the respondent.

11. Ms Heena Chauhan, learned counsel for the petitioner submitted that the learned Trial Court granted monthly maintenance of 2,000/-, which is insufficient to maintain the petitioner. The respondent is getting salary of 67,854/- per month and he can easily pay maintenance of 10,000/- to the petitioner. The maintenance of 2,000/- per month is insufficient to maintain a person; therefore, she prayed that the present petition be allowed and the order passed by the learned Trial Court be modified by enhancing the maintenance to 10,000/- per month.

12. Mr. Devender Ghosh, learned counsel for the respondent submitted that the petitioner is not a legally wedded wife of the respondent. Ved Prakash (RW3) proved that he had solemnized marriage with the petitioner. This shows that the petitioner is living in adultery and is not entitled to any Page |8 maintenance; hence, he prayed that the present petition be allowed and the order passed by the learned Trial Court be set .

aside.

13. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

14. The respondent admitted in his cross-examination that the petitioner used to reside with him as his wife at Sungra.

He and the petitioner went to Panchayat Ghar, where the marriage was solemnized. They had signed the register of the marriage kept in the Panchayat Ghar. The petitioner's Aadhar Card also shows her as his family member. The petitioner had divorced Shalig Ram before marrying him.

15. The statement of the respondent shows that he had admitted his marriage with the petitioner. He also admitted that the petitioner had divorced Shalig Ram before marrying him;

hence, the plea that the petitioner had married him during the subsistence of marriage with Shalig Ram was rightly rejected by the learned Trial Court. Once the respondent admitted that the petitioner had divorced Shalig Ram, the marriage with the respondent cannot be said to be void.

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16. The respondent claimed that the petitioner had married Ved Prakash (RW3) during the subsistence of marriage .

with him. Ved Prakash (RW3) stated that he married the petitioner on 03.10.2011 in a temple. She resided with him for eight days and left him on 11.10.2011. A customary divorce deed was executed between the parties. The copy of the customary divorce deed (Ext.

RW3/A) was correct as per the original brought by him to the Court. He stated in his cross-examination that the deed (Ext.

RW3/A) was not attested by any person. The petitioner's mother brought the marriage proposal to him and he agreed to this proposal. He denied that no marriage was solemnized between the petitioner and him and a false document was prepared at the instance of respondent Kanwar Singh.

17. The petitioner stated in her cross-examination that she had solemnized one marriage with Shalig Ram. The marriage was dissolved by the Court. She had not married Ashok Kumar or Ved Prakash. She denied that a customary divorce deed was prepared between her and Shalig Ram. She also denied that she threatened to falsely implicate the respondent and got her name entered in the Pariwar Register of the respondent.

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18. The respondent proved the statement made by the petitioner in a case titled State versus Kanwar Singh (Ext. RW1/A) .

by examining Shashi Bhushan (RW1), the record keeper. The petitioner had stated in this statement that the deed Exhibit D1 bears her signatures inside the red circle, which was prepared regarding her marriage with Ved Prakash and divorce dated 11.10.2011. She resided with Ved Prakash for 5-6 days and had gone herself to obtain a divorce from him. She had got the documents prepared herself.

19. These are the admissions made by the petitioner, which show that she had resided with Ved Prakash for 5-6 days as his wife and had divorced him. The petitioner admitted that the deed Ex. D1 was regarding the marriage with Ved Prakash and the divorce with him. This corroborates the version of the respondent that the petitioner had resided with Ved Prakash as his wife during the subsistence of her marriage with the respondent for 5-6 days and had obtained a divorce from him. The learned Trial Court held that the admission made by the petitioner that she had signed the divorce deed with Ved Prakash would not assist the respondent because the petitioner could not have validly married Ved Prakash during the subsistence of her marriage with the respondent.

P a g e | 11 Learned Trial Court erred in equating adultery with a valid marriage. The respondent claimed that the petitioner had resided .

with Ved Prakash as his wife and had divorced her after eight days.

Therefore, even if the marriage between the petitioner and Ved Prakash was not valid being contrary to Section 5 of the Hindu Marriage Act, it is sufficient to prove that the petitioner resided with Ved Prakash during the subsistence of her marriage with the respondent as his wife; therefore, she was living in adultery and was not entitled to maintenance.

20. It was submitted that this Court cannot re-appreciate the evidence in revisional jurisdiction. There can be no dispute with the proposition of law that it is impermissible to appreciate the evidence while exercising the revisional jurisdiction, however, in the present case, the learned Trial Court had ignored the admission made by the petitioner and had taken a view, that could not have been taken by any reasonable person and it is permissible for this Court to interfere with such a findings of fact.

21. Thus, the learned Trial Court erred in ignoring the admission made by the petitioner. It was duly proved by the petitioner's admission that she was living in adultery with Ved P a g e | 12 Prakash and she cannot be held entitled to any maintenance.

Learned Trial Court erred in granting maintenance to her.

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22. Consequently, the revision filed by the respondent is allowed and the maintenance awarded in favour of the petitioner is ordered to be set aside, whereas, the revision filed by the petitioner is dismissed.

(Rakesh Kainthla) Judge 5th July, 2024 (Saurav pathania)